

STATE OF NEW YORK

2278--A

Cal. No. 91

2025-2026 Regular Sessions

IN ASSEMBLY

January 16, 2025

Introduced by M. of A. ROSENTHAL, SANTABARBARA -- read once and referred to the Committee on Higher Education -- reported from committee, advanced to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the education law, in relation to requiring pharmacies that are permanently discontinuing to notify customers of such discontinuance

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The education law is amended by adding a new section 6811-d to read as follows:

§ 6811-d. Notification of permanent pharmacy discontinuance. 1. Every registered pharmacy that sells prescription drugs at retail shall provide public notice at least thirty days prior to its permanent discontinuance. Such notice shall:

(a) be provided, to the extent possible, to customers who have had a prescription filled at the pharmacy within the year prior to its discontinuance through the customer's primary means of communication with such pharmacy; and

(b) be conspicuously posted at or adjacent to the place in the pharmacy where prescriptions are presented for compounding and dispensing, in the waiting area for customers, or the area where prescribed drugs are dispensed.

2. The notification required pursuant to subdivision one of this section shall include, but not be limited to:

(a) the date of such pharmacy's discontinuance;

(b) the names, addresses, and phone numbers of the five nearest pharmacies, including independently owned pharmacies, if applicable;

(c) instructions on transferring any existing prescriptions to another pharmacy; and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (d) information regarding the disposition of prescription records if a
2 customer fails to transfer a prescription prior to such pharmacy's
3 discontinuance.
4 § 2. This act shall take effect on the sixtieth day after it shall
5 have become a law.